



Federal Ministry  
for the Environment, Nature Conservation  
and Nuclear Safety

## Side Event

# **Towards an Effective High Seas Treaty** Building on and Strengthening Regional Ocean Governance

New York, 25 March 2019



ABIDJAN CONVENTION  
CONVENTION D'ABIDJAN



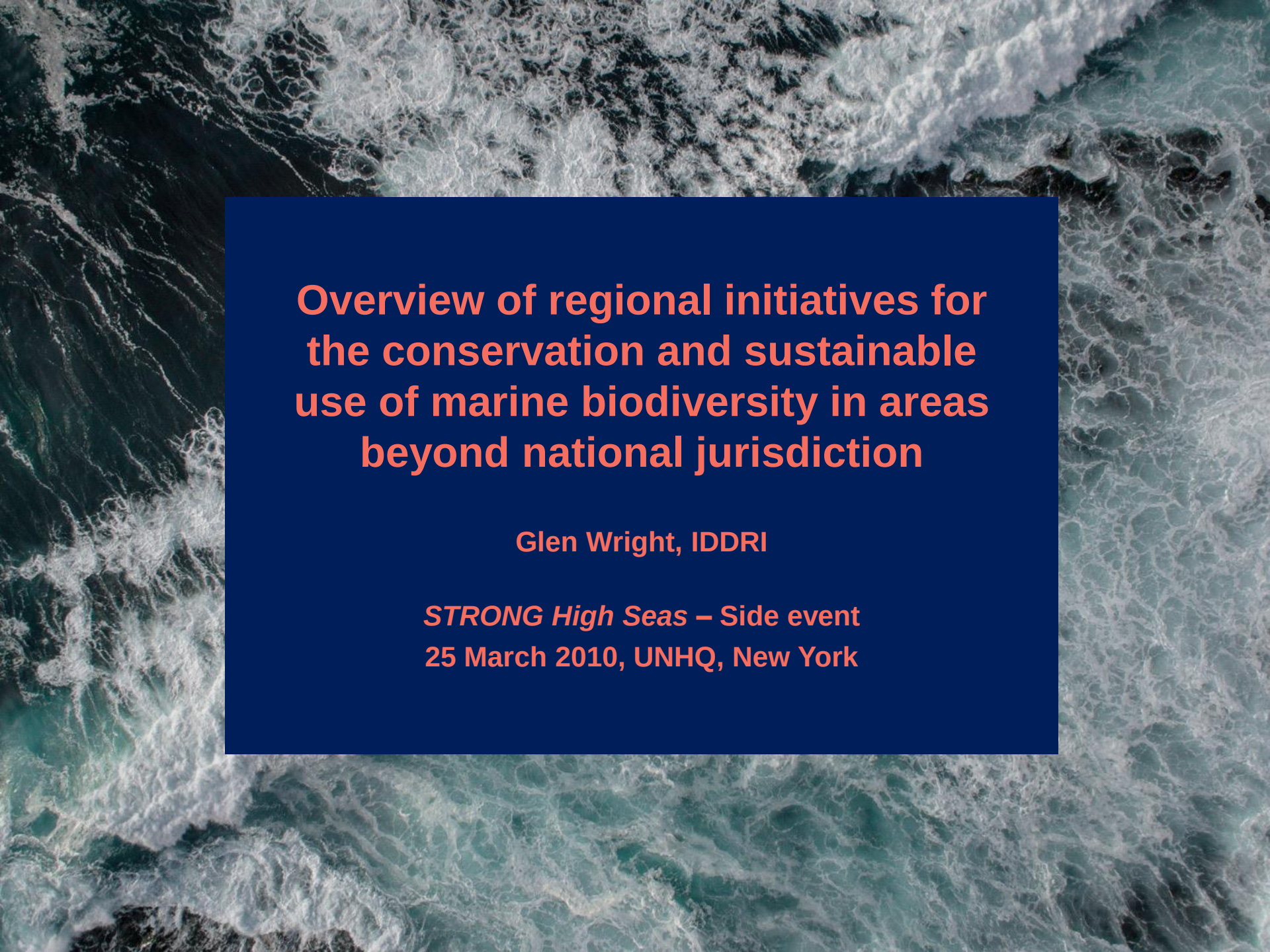
IDDRI



International Ocean Institute  
African Region



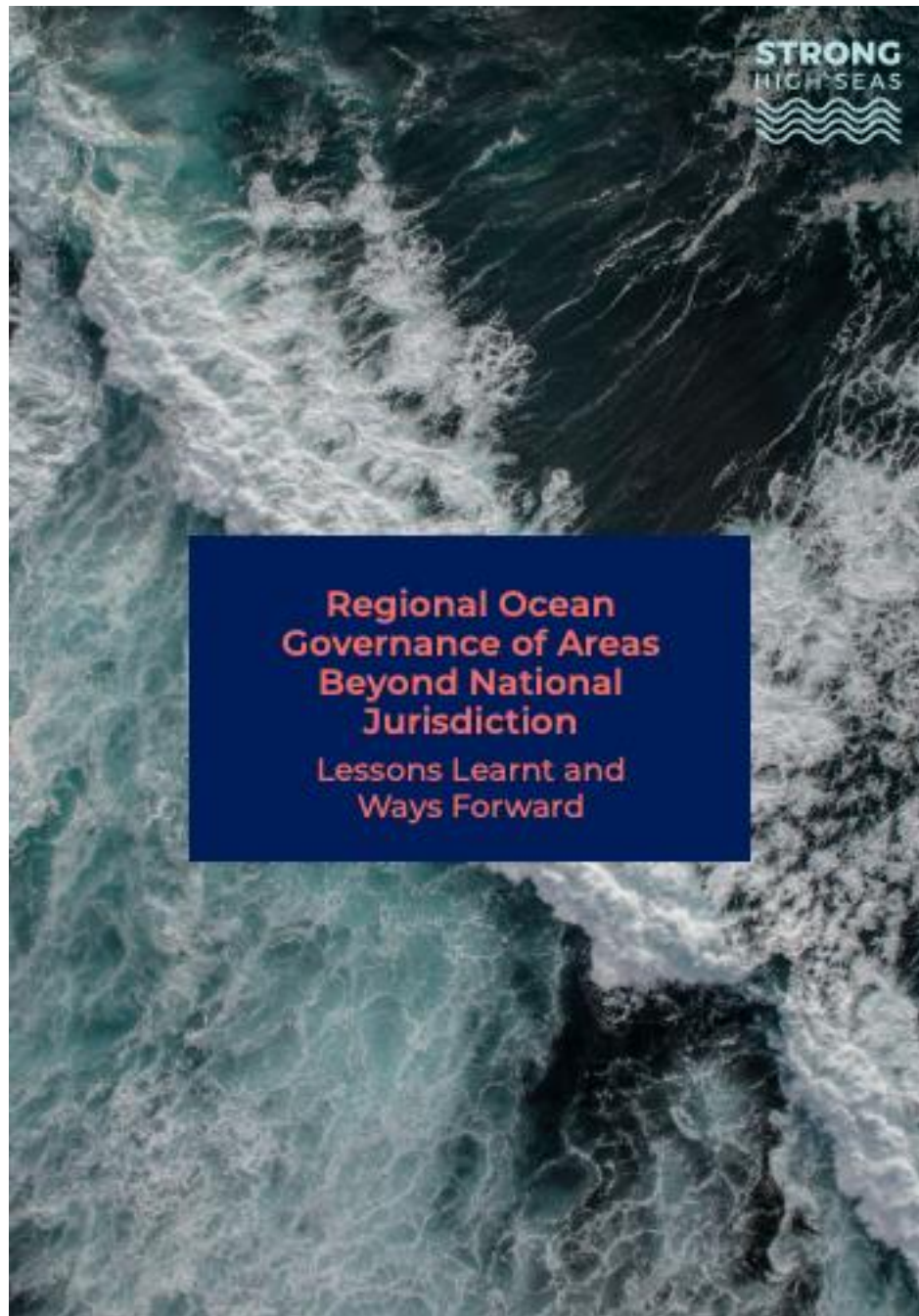




# Overview of regional initiatives for the conservation and sustainable use of marine biodiversity in areas beyond national jurisdiction

Glen Wright, IDDRI

*STRONG High Seas* – Side event  
25 March 2010, UNHQ, New York



**STRONG**  
HIGH SEAS

**Regional Ocean  
Governance of Areas  
Beyond National  
Jurisdiction**

**Lessons Learnt and  
Ways Forward**

**STRONG**  
HIGH SEAS

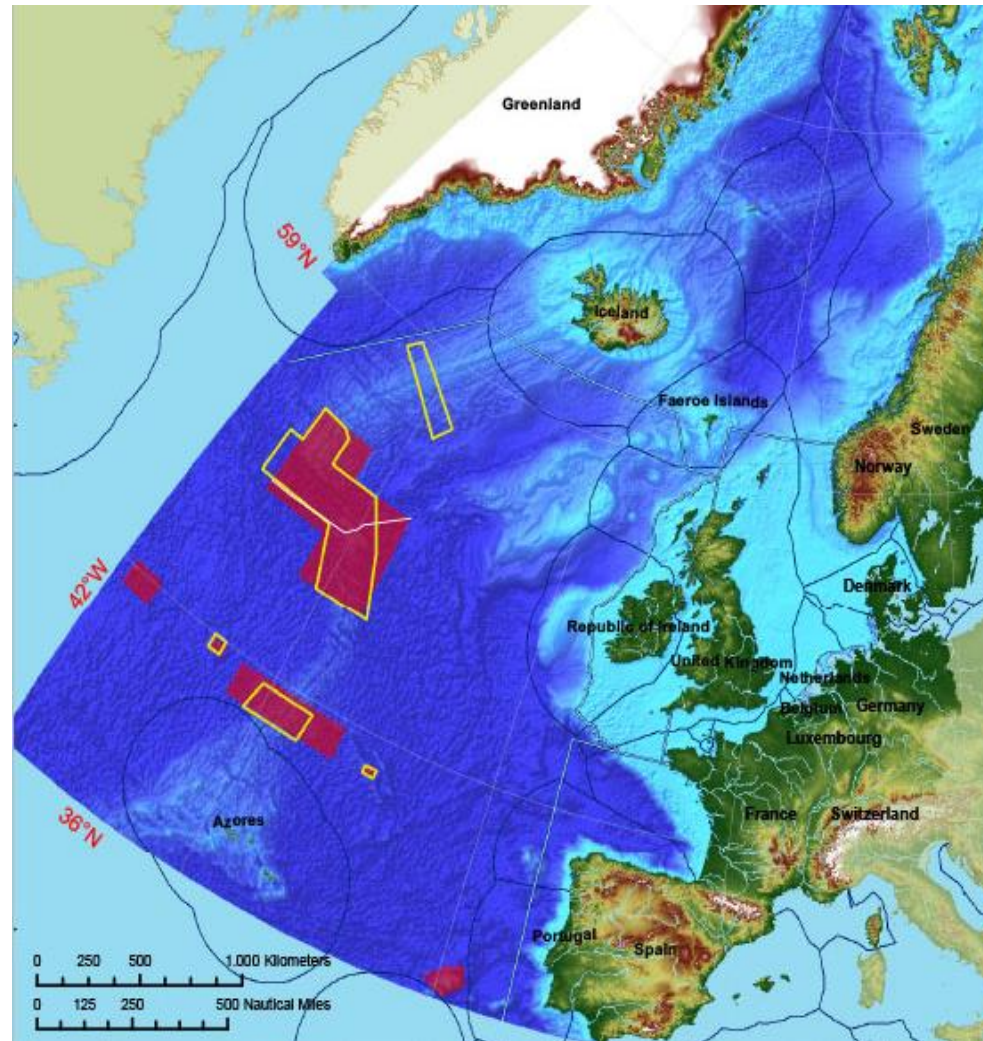


# Ongoing initiatives



- |                                                        |                                                                  |
|--------------------------------------------------------|------------------------------------------------------------------|
| 1. Collective Arrangement for the North-East Atlantic  | 6. Ecologically or biologically significant marine areas (EBSAs) |
| 2. Sargasso Sea Commission                             |                                                                  |
| 3. Pelagos Sanctuary                                   | 7. Permanent Commission for the South Pacific (CPPS)             |
| 4. Antarctic Treaty System                             | 8. Nairobi Convention                                            |
| 5. Regional fisheries management organizations (RFMOs) | 9. Abidjan Convention                                            |

# North-East Atlantic

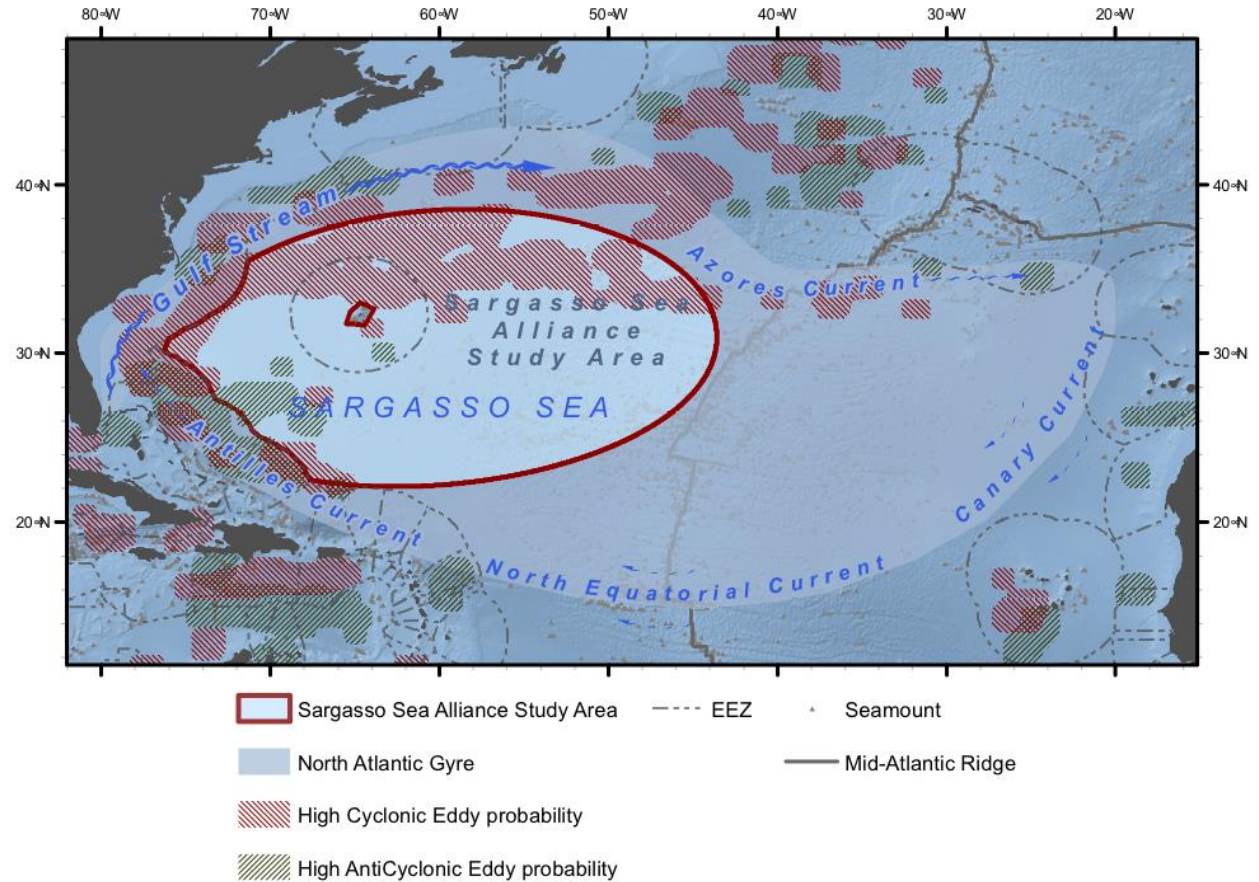
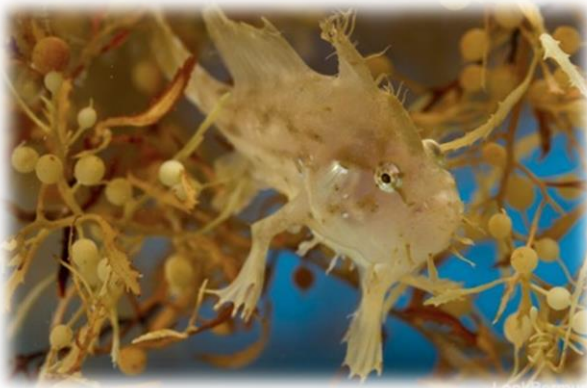


German Federal Agency for Nature Conservation

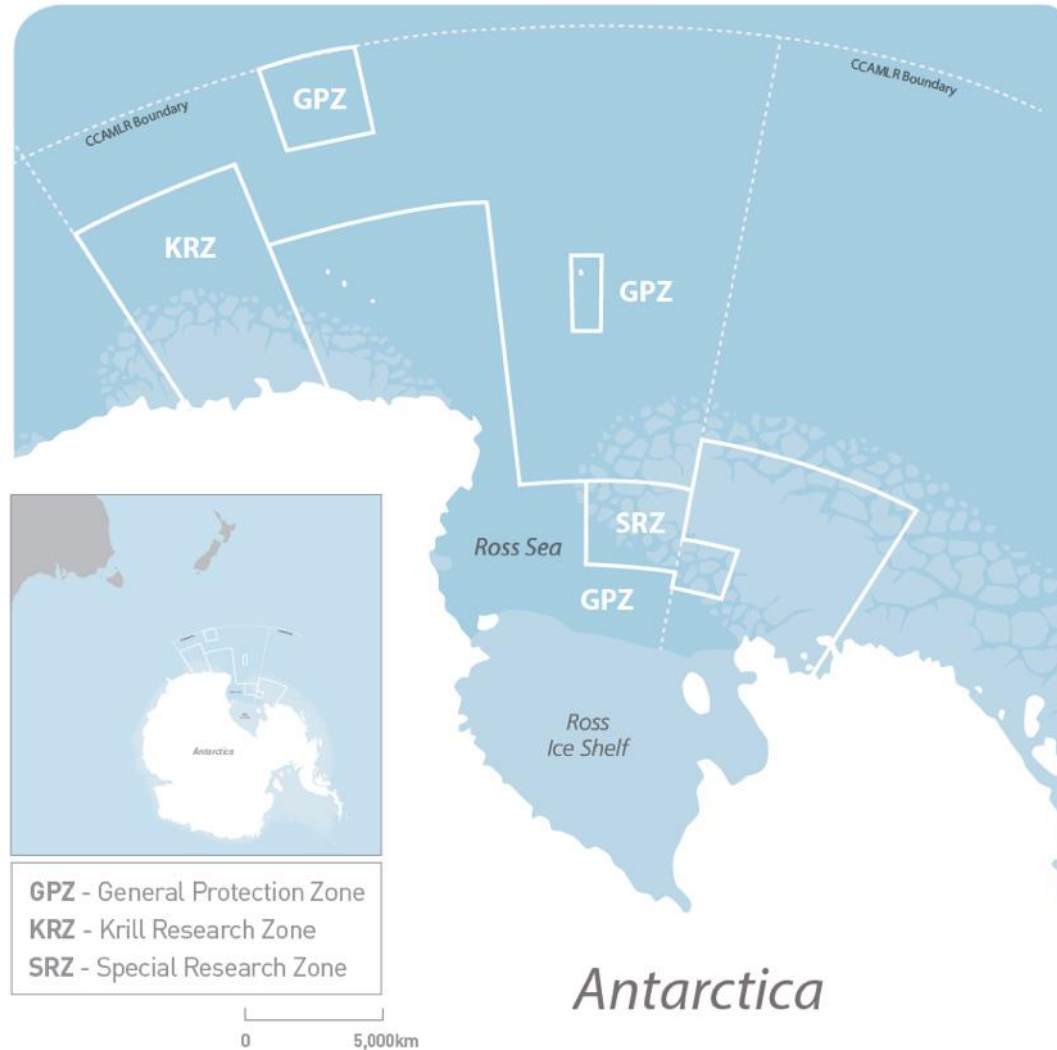
<http://mare.essenberger.de/en/karte-charlie-gibbs-schutzgebiet.php>



# Sargasso Sea



# Southern Ocean



*Antarctica*



CCAMLR

## Lessons learned

1. The need for cooperation and coordination
2. The role of champions and leaders
3. The importance of developing a dynamic science-policy interface
4. The need for an appropriate legal framework



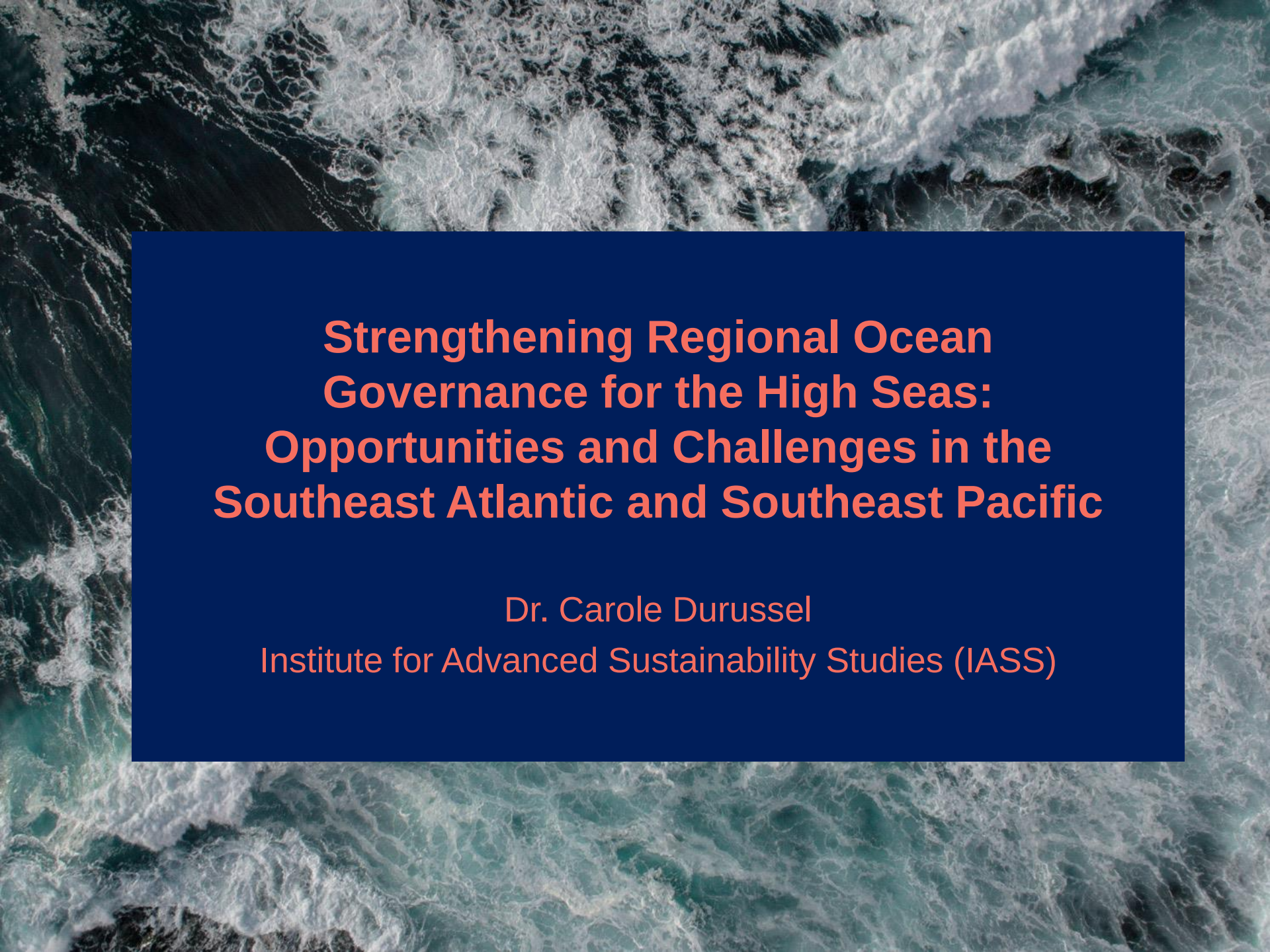


**Thank you**

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**IKI STRONG High Seas project  
[prog-ocean.org/our-work/strong-high-seas/](http://prog-ocean.org/our-work/strong-high-seas/)**





# **Strengthening Regional Ocean Governance for the High Seas: Opportunities and Challenges in the Southeast Atlantic and Southeast Pacific**

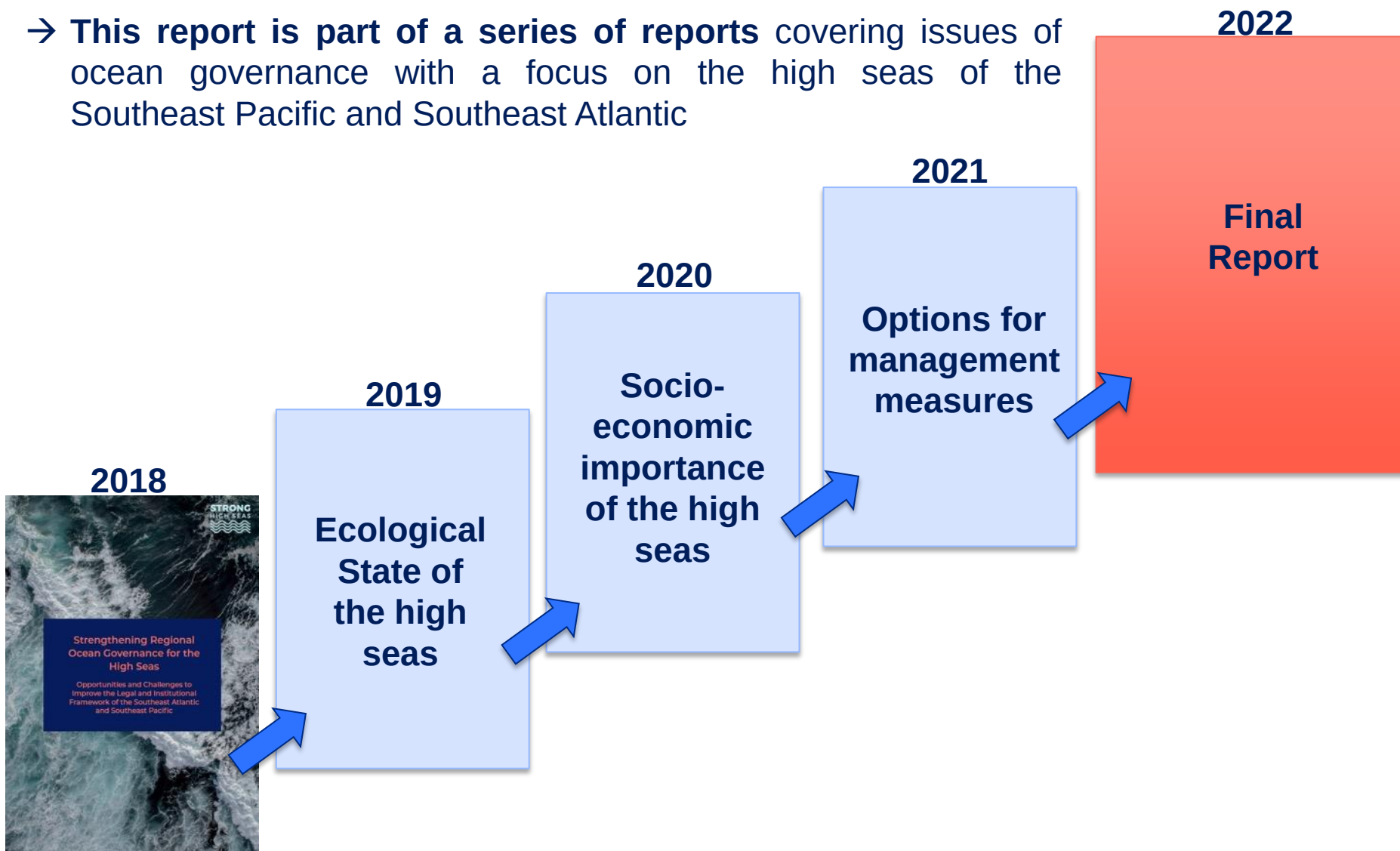
Dr. Carole Durussel

Institute for Advanced Sustainability Studies (IASS)



# STRONG High Seas Reports

→ This report is part of a series of reports covering issues of ocean governance with a focus on the high seas of the Southeast Pacific and Southeast Atlantic



# Objectives of the Report

- **Assess the relevant governance frameworks** currently in place for the management of high seas biodiversity in the Southeast Pacific and Southeast Atlantic
- **Identify the challenges and opportunities** for advancing conservation and sustainable use of high seas biodiversity around two important ongoing international processes: the **BBNJ process** and **Sustainable Development Goal 14**
- **Identify possible options** for strengthening governance and regional cooperation

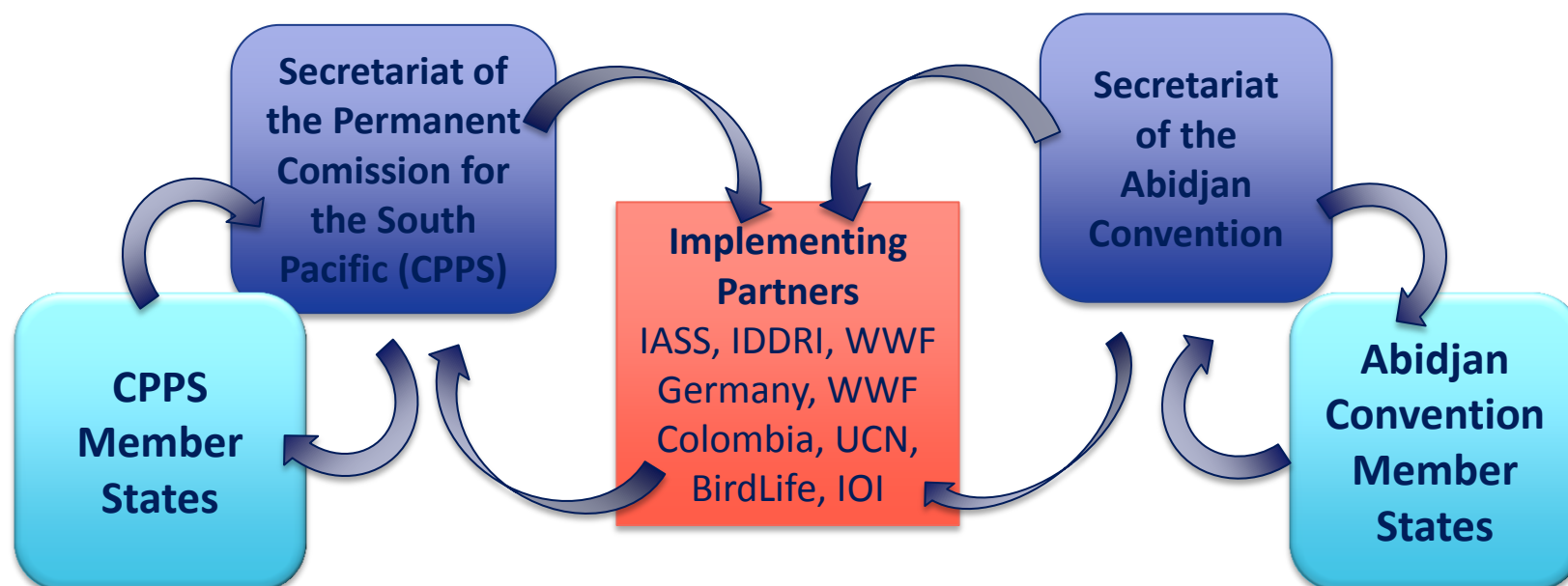


Focal regions of the STRONG High Seas project



# Methodology

- **Co-design** of scientific assessments with Secretariats in both regions and **involvement of stakeholders** through regional workshops and expert opinion
- Extensive **literature review** and detailed **analysis of legal and policy documents** (based on previous studies)
- **Review by ocean governance experts** and STRONG High Seas project advisory board members



# BBNJ Elements and Sustainable Development Goal 14



The discussion in this report is structured **around two important ongoing international processes:**

- The ongoing negotiations within the United Nations for an international legally binding instrument on the conservation and sustainable use of marine biodiversity beyond national jurisdiction (**BBNJ**); and
- **Sustainable Development Goal (SDG) 14**

## **BBNJ Elements:**

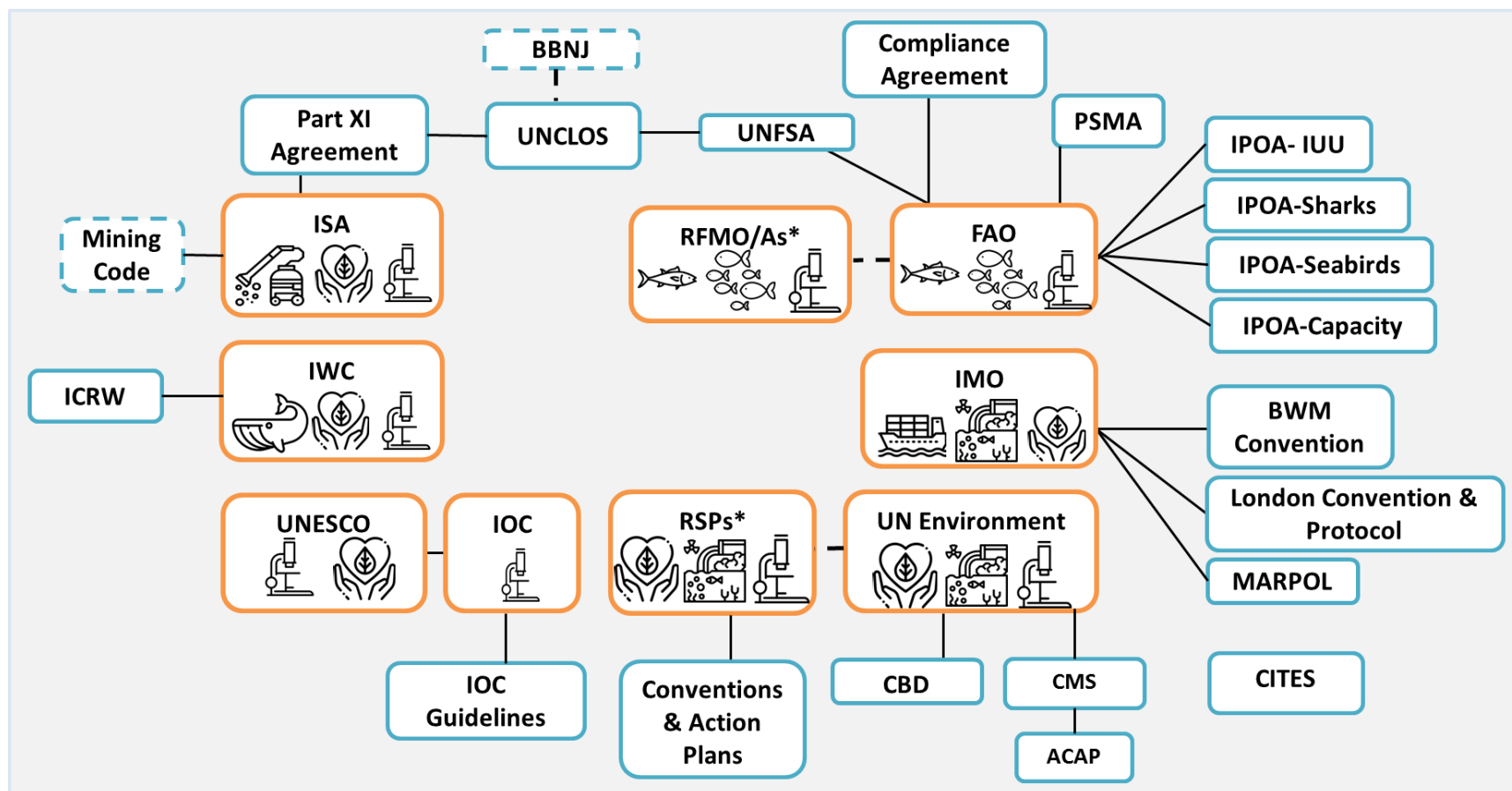
- **Area-based Management Tools (ABMTs)**
- **Environmental Impact Assessments (EIAs)**
- **Marine Genetic Resources (MGRs)**
- **Capacity Building and Transfer of Marine Technology**

## **SDG 14:**

- **14.1** – Marine Pollution
- **14.2 y 14.5** – Management and Protection of Marine Ecosystems in ABNJ
- **14.4** – Illegal, Unreported and Unregulated (IUU) Fishing



# Global Governance Framework for BBNJ



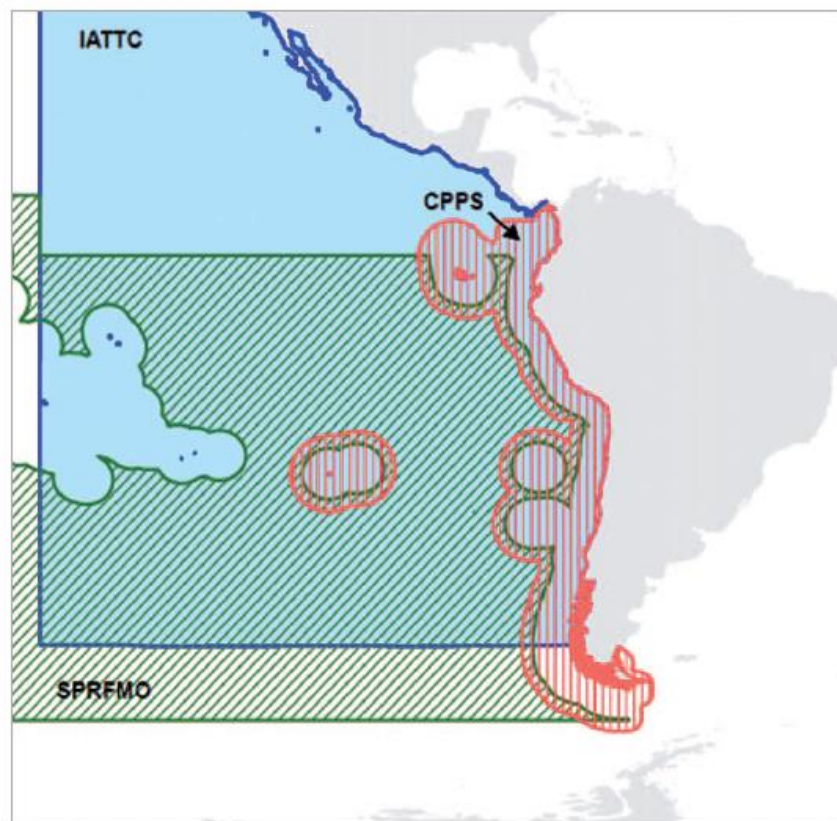
## Legend



Depiction of main mandates/activities



# Regional Governance Framework for BBNJ

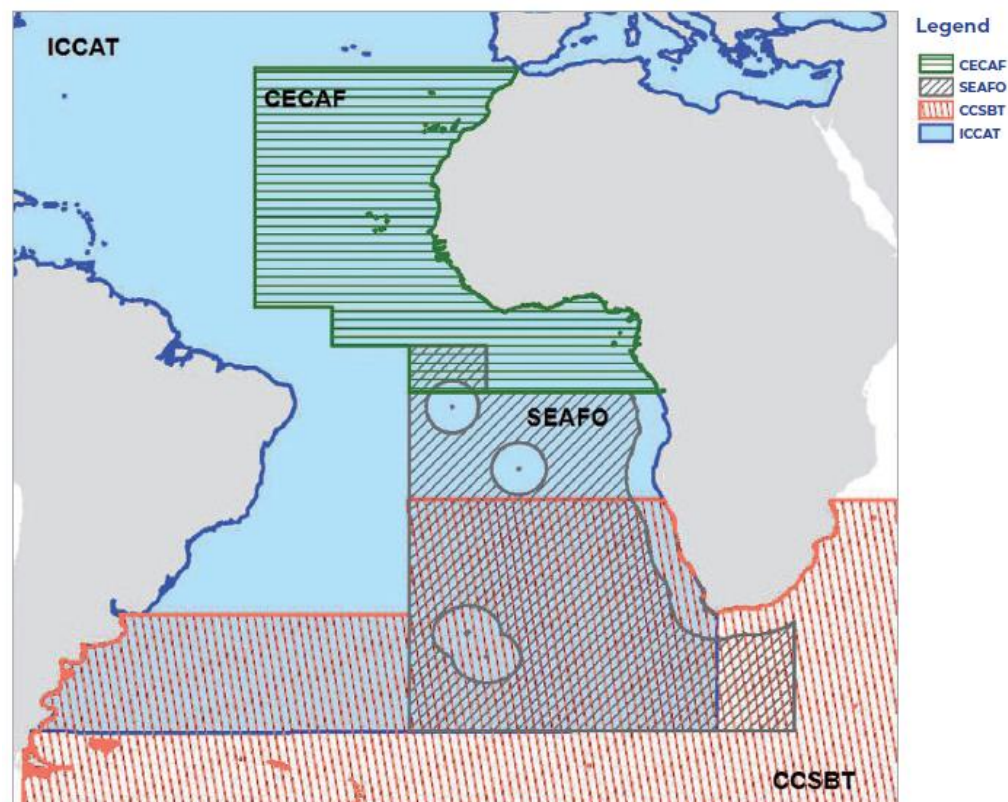


**Southeast Pacific**

## Legend

- CPPS
- SPRFMO
- IATTC

## Southeast Atlantic



## Legend

- CECAF
- SEAFO
- CCSBT
- ICCAT

# Challenges in the Regions

- Organisations within the regions have **varying and non-comprehensive or limited mandates** to address issues related to BBNJ – in the Southeast Pacific, organisations have a **complementary mandate**;
- There is **limited cross-sectoral cooperation** within the regions, with individual organisations adopting their own principles, resolutions and recommendations for addressing BBNJ challenges;
- There exists **varied and uneven participation in regional and global agreements** within both regions, making it difficult to fully address issues related to biodiversity beyond national jurisdiction (BBNJ) without an adequate legal basis or, **in the case of the Southeast Atlantic, also an institutional basis**;
- Member States in the Southeast Atlantic are **diverse in terms of culture, language and available capacity**.



# Possible Options to Strengthen Regional Ocean Governance in the Regions



- **Cross-sectoral cooperation and coordination** to ensure the implementation of the ecosystem-based approach to the conservation and sustainable use of BBNJ:
  - can be eased if more States in the regions **become parties to key international and regional agreements** → shared basis for **common action**
  - through e.g. **joint programmes, Memoranda of Understanding, and participation in events**;
  - could support a coordinated, regional approach to conservation and sustainable management through e.g. the expansion of efforts to coordinate BBNJ issues by **empowering regional seas programmes to consider areas beyond national jurisdiction (ABNJ)**.

# Possible Options to Strengthen Regional Ocean Governance in the Regions



- **States in the regions** could:
  - implement a **common approach or policy for the region** on conservation priorities **by championing flag State responsibility** to impose regulations regarding areas or activities that are not currently covered by a competent management authority;
  - **form coalitions to promote mutual interest** in specific BBNJ-related issues within existing processes;
  - promote conservation and sustainable use of BBNJ **by voicing their views and proposing management actions** at global and regional fora;
  - **support a robust scientific basis and the development of capacity** for taking action to ensure the establishment of conservation and management measures and ensure the complementarity of sectoral measures.

# Linking Global and Regional Governance

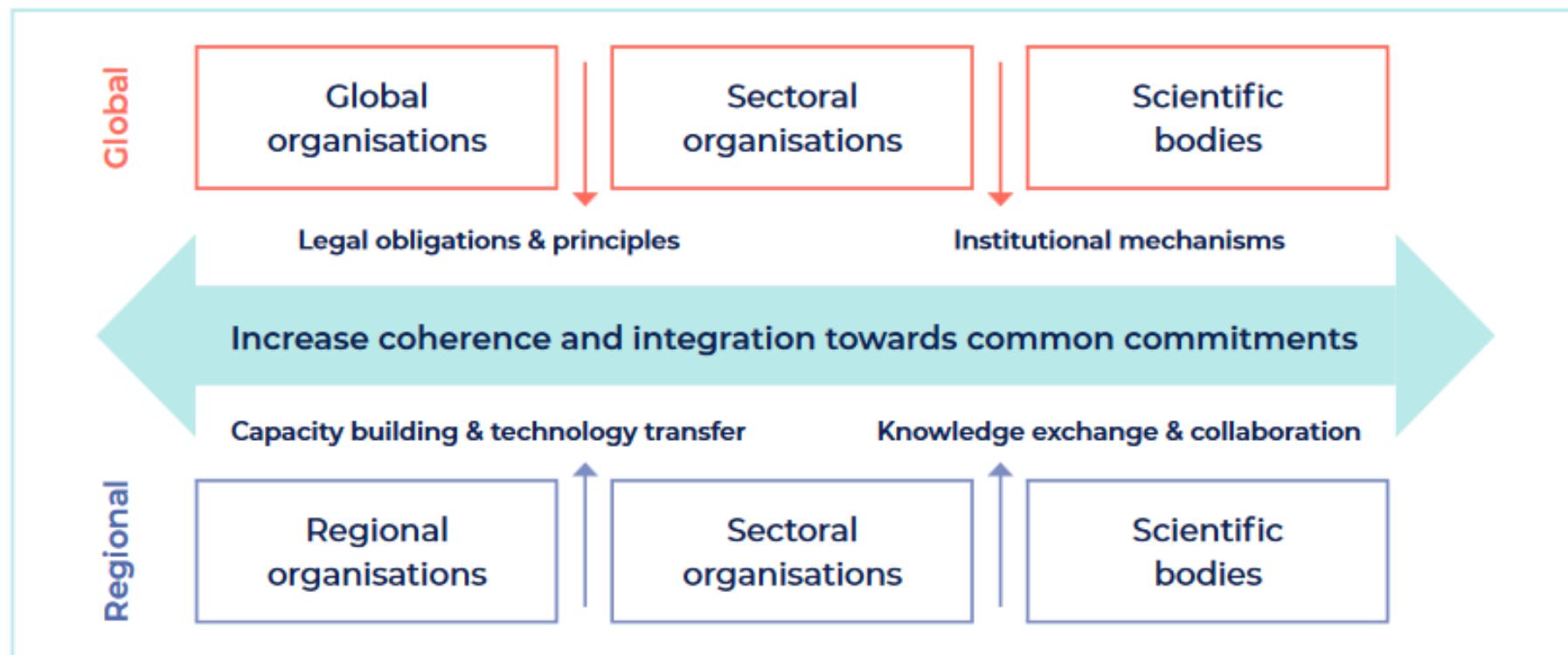
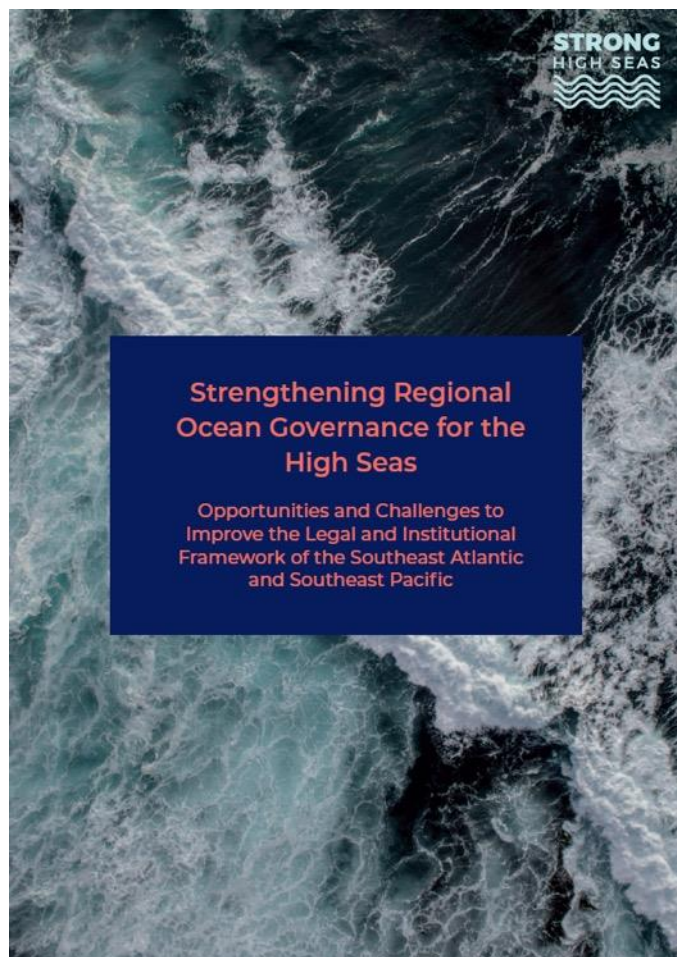


Figure: A new agreement will need to increase coherence and integration between and across regional and global institutions, both vertically and horizontally, to enhance the conservation and sustainable use of BBNJ



# You can download the reports here:

<https://www.prog-ocean.org/our-work/strong-high-seas/strong-high-seas-resources/>



# Thank you!



Supported by:



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**Underpinning a treaty with strong  
regional and sectoral governance:**  
Need for strengthening regional and  
sectoral governance

Kristina Gjerde



# STRONG High Seas Policy Brief



**Conservation and Sustainable  
Use of Marine Biodiversity  
in Areas Beyond  
National Jurisdiction:**

**Options for Underpinning a Strong  
Global BBNJ Agreement through  
Regional and Sectoral Governance**

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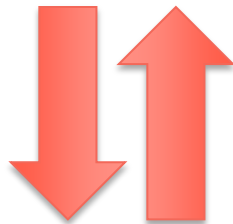
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## BBNJ Agreement as an Opportunity

Regional ocean institutions, processes and coordination mechanisms **play a significant role** in advancing the conservation and sustainable use of BBNJ **by contributing to improved global governance of the ocean**



Achieving and using this potential at the global level will **require a new enabling & strong BBNJ agreement**

**“Strong efforts in just a few regions will still not prevent loss of marine biodiversity at the global level.” Bille et al, UNEP 2016**



Raphaël Billé, Lucien Chabason, Petra Drankier, Erik J. Molenaar, Julien Rochette, 2016. Regional Oceans Governance:

Making Regional Seas Programmes, Regional Fishery Bodies and Large Marine Ecosystem Mechanisms Work Better Together. UNEP Regional Seas Reports and Studies No. 197, 60 pp.



## So... How?

### Consideration I

*How can a **BBNJ** agreement enhance the effectiveness, inclusiveness and capacity of regional and sectoral institutions?*



**By creating the conditions and practical arrangements for effective cooperation, coordination and action ('interplay')**

### Consideration II

*How can **regional activities and mechanisms** bolster the achievement of **global objectives** set forth in a new agreement?*



**By being important means of translating global agreements to specific geographical areas, which is essential for an ecosystem approach**



# Building blocks for strengthening regional ocean governance

# What needed in global agreement?

## Shared Commitments

Overarching obligations to cooperate to:

- Protect and preserve
- Conserve
- Integrate biodiversity
- Share data
- Apply precaution
- Maintain ecosystem health

Specific obligations to:

- Develop sectoral & regional biodiversity strategies and action plans
- Include marine spatial planning as part of process
- Adopt measures at national, regional and sectoral level to implement



ABMTs including MPAs: Obligations to establish

- Coherent network of Global MPAs
- Sectoral ABMTs
- Regional MPAs
- Other ABMTs including marine spatial planning

Strategic environmental assessments: Obligations to establish

- Baseline assessment for sectoral and regional biodiversity strategies and action plans

Environmental impact assessments: Obligations to assess

- Transboundary effects
- Cumulative effects
- Climate change inclusive



# What needed in global agreement?

## Institutional mechanisms

### Global decision making body

- Establish & manage Global MPAs
- Endorse Regional MPAs, sectoral ABMTs
- Review EIAs and SEAs
- Enable cross-sectoral planning processes
- Review and oversee implementation

### Other bodies

- Science advisory body
- Capacity
- Financial mechanism
- Compliance/implementation review
- Regional coordination mechanisms

➤ Platform for cooperation

# What needed in global agreement?

## Capacity building across all issues

- Existing regional and sectoral bodies
- Regional coordinating mechanism
- Regional centres of excellence:
- Regional databases of information and data
- Joint training in implementation of principles, criteria and standards
- Data, equipment and training



**Summary: achieving coherence requires commitment  
and capacity at all levels!**

